

23PSCV03696 23PSCV03696

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-07-20

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Case Number: 23PSCV03696 Hearing Date: July 20, 2026 Dept: H

Monfared v. Elliott, et al.,

Case No. 23PSCV03696

ORDER ON

DEFAULT JUDGMENT APPLICATION

Plaintiff Mo Monfared's Application for

Default Judgment is DENIED without prejudice.

Background

Plaintiff

Mo Monfared ("Plaintiff") alleges as follows:

Plaintiff

owns a 1969 Chevrolet Chevelle ("subject vehicle"). On or about April 26, 2022, Plaintiff entered into an oral agreement with Rick Elliott ("Elliott") and Joe Panzarello ("Panzarello") (together, "Defendants") to have Defendants completely restore the Chevelle. On or about November 4, 2022, Plaintiff picked up his subject vehicle in an unfinished condition because Defendants indicated that they would not continue the restoration unless Plaintiff paid more money than agreed upon. Plaintiff subsequently took the subject vehicle to Xtreme Autosports SCV ("Xtreme") to finish the restoration. Xtreme indicated that all of the work that had been done by Defendants had to be redone because the quality of work was poor.

On

November 19, 2025, Plaintiff filed a First Amended Complaint, asserting causes

of action against Defendants and Does 1-50 for: (1) Breach of Contract, (2) Breach of Covenant of Good Faith and Fair Dealing, (3) Fraud, (4) Negligent Misrepresentation, (5) Conversion, (6) Unfair Business Practices [Violation of Business & Professions Code § 17200], and (7) Financial Elder Abuse.

On

January 15, 2026, Defendants' defaults were entered. On February 2, 2026, Elliott purported to file an answer. On June 29, 2026, the Court granted Plaintiff's motion to strike Elliott's answer.

An

Order to Show Cause Re: Default Judgment is set for July 20, 2026.

Discussion

Plaintiff's

Application for Default Judgment is denied without prejudice. The following defects are noted:

1. Plaintiff

has failed to dismiss Does 1-50.

2. Plaintiff has failed to provide the Court with a brief summary of the case.

3. Plaintiff asserts that he paid Defendants \$15,000.00 in cash. The Court requests that Plaintiff provide copies of bank statements or other documentary evidence, to the extent it exists, reflecting withdrawals corresponding with these payments.

4. Plaintiff has failed to provide the Court with any evidence reflecting that Elliott nor Panzarello possessed a valid license/was not registered with from the Bureau of Automotive Repair ("BAR") at any point during the time the work was being performed on the subject vehicle.

5. Plaintiff makes reference to a complaint having been filed with the BAR on his behalf against Defendants, but has not attached a copy of same. The Court requests that Plaintiff furnish a copy, as well as provide any communications received in response from the BAR.

6. The Court requests that Plaintiff attach a copy of "§ 274.11 Motor Vehicle Repair and Service" referenced in Paragraph 31 of his declaration.

7. The Court requests more information as to the nature of the work contemplated under the parties' agreement. It is unclear whether the work contemplated involved upholstery or bodywork versus mechanical work, or both.

8. The Court requests briefing on the attorney's fees issue and Plaintiff's request for same in connection with his financial elder abuse cause of action.

Accordingly, the application for default judgment is denied without prejudice, and Plaintiff is directed to submit a revised and complete default judgment application that addresses the aforementioned issues.